

On moving the reference, under the 77th Order, it will be recollected, the plaintiff was to support his motion by an affidavit in proof of the bill. This affidavit may now be in the short form prescribed by the following Order :

This affidavit of verification upon motions for a summary reference in the cases enumerated in Order I. may be in the form set forth in Schedule C, hereunder written.

III.

January, 1851.

IN CHANCERY.

Between A. B. plaintiff,
and

C. D. defendant.

A. B. of, &c., the above-named plaintiff, maketh oath and saith, that the allegations contained in the bill of complaint of this deponent hereto annexed, are, and that each of them is true in substance and in fact, to the best of this deponent's knowledge, sworn, &c., and belief.

The power of the Court, to make such Order as may be right under all the circumstances, is placed on the same footing as in England under the "Claim" Orders, by the following :—

Upon the hearing of any motion for a decree, under the provisions of the 77th of the Orders of the 7th of May, 1850, the Court may, if it shall think fit, make an Order granting or refusing the relief prayed, or may direct the examination of either parties or witnesses, or further inquiries, or other proceedings, to be had for the purpose of ascertaining the plaintiff's title to the relief claimed : and further, the Court may direct such (if any) persons, or classes of persons as it shall think necessary or fit, to be made parties to the suit, or to be summoned to attend any proceedings before the Master with reference to any accounts or inquiries directed to be taken or made, or otherwise.

IV.

Order that may
be made on
motion for
reference.

This is copied, *mutatis mutandis*, from the English Order 13, of April, 1850.

Compared with
English Order.

The frequent delays which occurred in consequence of all parties interested in the subject matter of a suit, not being before the Court, rendered necessary such Orders as the following, to obviate in some degree, the difficulty.

Parties.

If upon the proceedings before the Master under any decree made under the provisions of the 77th Order of the 7th of May, 1850, or of Order I. comprised in these

V.

Parties may be
subpoenaed